

26STCP00802 26STCP00802

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Case Number: 26STCP00802 Hearing Date: August 25, 2026 Dept: 307

14 TENTATIVE RULING 9:15 a.m., Tuesday, August 25 2026

KIMBERLY

GAITHER v. KAISER FOUNDATION HEALTH PLAN, INC., et al. [26STCP00802]

PETITION

TO VACATE ARBITRATION AWARD BY PETITIONER KIMBERLY GAITHER, ADMINISTRATOR OF THE ESTATE OF DWAYNE FRANKLIN GAITHER

MOTION

TO QUASH SERVICE OF PETITION TO VACATE ARBITRATION AWARD BY RESPONDENTS KAISER FOUNDATION HEALTH PLAN, INC., KAISER FOUNDATION HOSPITALS, AND SOUTHERN CALIFORNIA PERMANENTE MEDICAL GROUP

BACKGROUND:

Petition to vacate arbitration award arising from the arbitration of a medical malpractice and wrongful death dispute

TIMELINE:

2/27/2026: Petitioner Kimberly Gaither,

Administrator of the Estate of Dwayne Franklin Gaither ("Petitioner") files the Petition to Vacate the Arbitration Award against Respondents Kaiser Foundation Health Plan, Inc., Kaiser Foundation Hospitals, Southern California Permanente Medical Group (collectively, "Moving Respondents"), Cheyenne Gaither, and Devontae Gaither, seeking to vacate the \$5 million arbitration award awarded in a medical malpractice and wrongful death claim on behalf of Petitioner's deceased father, Dwayne Gaither.

6/30/2026: Petitioner files a Notice of Hearing on the Petition to Vacate the Arbitration Award.

7/22/2026: Moving Respondents file this Motion to Quash Service of the Petition, which is followed by a Notice of Non-Opposition (8/18/2026).

8/18/2026: Petitioner's counsel files a declaration stating that the Motion to Quash Service was not properly served.

8/19/2026: Moving Respondents file the Declaration of Nicole F. Devanon in Support of the Motion to Quash Service.

TENTATIVE

RULING: PETITION TO VACATE ARBITRATION AWARD BY PETITIONER KIMBERLY GAITHER, ADMINISTRATOR OF THE ESTATE OF DWAYNE FRANKLIN GAITHER is CONTINUED.

MOTION

TO QUASH SERVICE OF PETITION TO VACATE ARBITRATION AWARD BY RESPONDENTS KAISER FOUNDATION HEALTH PLAN, INC., KAISER FOUNDATION HOSPITALS, AND SOUTHERN CALIFORNIA PERMANENTE MEDICAL GROUP is CONTINUED.

I. PETITION

TO VACATE ARBITRATION AWARD

Petitioner seeks an order vacating the arbitration award (dated and served on November 24, 2025) arising from the contractual arbitration between Petitioner and Respondents conducted by Hon. Joyce Fahey in connection with Petitioner's medical malpractice and wrongful death claims. (See Pet., generally.)

Respondents have not opposed this Petition on the merits and have instead filed a Motion to Quash Service of the Petition, arguing that the Petition was not properly served. To avoid prejudice to the Respondents, the Court cannot reach the merits of the Petition to Vacate the Arbitration Award until the alleged notice issues raised by Moving Respondents are resolved.

Therefore, the Petition to Vacate the

Arbitration Award is CONTINUED pending resolution of the Motion to Quash Service of the Petition.

II. MOTION

TO QUASH SERVICE OF PETITION

Moving Respondents

move to quash service of the Petition to Vacate the Arbitration Award on the grounds that Petitioner failed to serve the Petition in compliance with Code Civ. Proc., § 1290.4, subd. (b)(1), which requires service of the petition and notice of the hearing to be served “in the manner provided by law for the service of summons in an action.” (Code Civ. Proc., § 1290.4, subd. (b)(1).)

Petitioner

objects to the Motion to Quash on the grounds that the motion itself was not properly served, thereby preventing Petitioner from filing a response to the merits of the motion. Petitioner’s counsel declares that he discovered the pending Motion to Quash on August 18, 2026 while reviewing the docket but did not receive formal notice of the motion, either electronically or by mail.

(Younge Decl., ¶¶ 3-4.) Moving Respondents’ counsel has filed a responsive declaration, indicating that the Motion to Quash was served on Petitioner’s counsel via email on July 21, 2026. (Devanon Decl., ¶ 2, Exh. A.) Even so, the parties’ conflicting evidence raises doubts as to whether Moving Respondents’ electronic notice resulted in timely, actual notice of the Motion to Quash to Petitioner.

In an

abundance of caution and to avoid prejudice to Petitioner, the Court will not hear the Motion to Quash on its merits at this time. Instead, the Court will continue the hearing on the Motion to Quash for the full 16-day statutory notice period to cure the deficient notice and to permit Petitioner a fair opportunity to file an opposition on the merits. (Code Civ. Proc., §§ 418.10, subd. (b), 1005.)

Accordingly,

at the hearing, the Court will continue both the Motion to Quash and the Motion to Vacate Arbitration Award, and will set briefing schedules in accordance with the hearing dates selected.

Respondents Kaiser Foundation Health Plan,
Inc., Kaiser Foundation Hospitals, and Southern California Permanente Medical

Group to serve notice of the hearing dates set for each motion. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted on court website on 8/24/26 at 2 p.m.